

Planning Commission Minutes of the Proceedings - Final

Historic Courthouse
310 W 19th Street
Cheyenne, WY 82001

Laramie County Planning Commission
Prepared by the Laramie County Planning & Development Office
Laramie County, Wyoming

Thursday, August 22, 2024

3:30 PM

Commissioners Board Room

Call To Order

Chairman Caughey called the meeting to order at 3:30 p.m. The assembly joined in the Pledge of Allegiance and guests were welcomed to the meeting.

Roll Call

Present	Jason Caughey, Jack Stadel, John Watkins, Mark Smith
Excused	Natacha Gaspar

Approval of Minutes

1. Consideration of the Minutes of the Proceedings For August 8, 2024.

[24 - 416](#)

Attachments: [PC 8.8.24 Draft](#)

John Watkins moved, seconded by Jack Stadel to approve the Minutes of the Proceeding for August 8, 2024. Vote 4-0.

Aye: Caughey, Stadel, Watkins, Smith

Excused: Gaspar

Land Use:Variances/Board App./Plats

2. Public Hearing regarding a review and recommendation of The Badlands Preliminary Development Plan, located in a portion of Section 34, Township 16 North, Range 67 West, 6th P.M., Laramie County, WY.

[24 - 417](#)

Attachments: [PZ-24-00069 PC Meeting Packet 8.22.24](#)

Cate Cundall, Associate Planner, said that Steil Surveying Services, LLC, on behalf of Energy Construction of WY, LLC, submitted a Preliminary Development Plan application for a 34 residential tract subdivision on a 349.82 acre parcel located in a portion of the NE 1/4 and South 1/2 of Section 23, T16N, R67W. Tracts will average 10.29 acres each. The subject parcel is in the LU zone district and is vacant agricultural land. The surrounding area consists of residential developments to the south and east ranging in size from 7-acres to 35+-acres and vacant land to the north

and west. Located in the AMEC Zone 2 area the lot sizes exceed the minimum lot size requirement.

The subdivision will be accessed via Sunlight Road and Painted Sky Road. Agency comments request that these roads be extended to the north property line of the subject property and brought up to Laramie County Road Standards. A portion of these roads pass through a subdivision that privately maintain the roads so a maintenance agreement is included in the agency request. A 30,000 gallon water cistern installed near the east entrance to the subdivision for fire protection is also an agency request.

Four conditions were recommended to be added to the approval of this action plan and included:

1. All agency comments must be addressed, and the plat revised prior to submittal of an application for a Subdivision Permit and Plat for The Badlands.
2. The extension of Sunlight Road and Painted Sky Road to the north must be resolved.
3. The LCFA request for a 30,000 gallon water cistern installed at the closest east entrance to the subdivision must be resolved.
4. A detailed Traffic Study must be completed for this development action.

Shane Hansen, applicant's agent, was present to answer any questions the Commissioners may have.

Chairman Caughey opened the Public Hearing for comments. Comments were heard from:

1. David Webster - 2087 Painted Sky - Happy with the lot sizes and location of the interior roads will eliminate subdivision traffic that would pass his residence. To keep the neighborhood quiet Mr. Webster would like to see covenants that restricts some types of fowl and prohibit shooting of firearms without a suppressor. He does have concerns on the maintenance and snow removal of the roads since they are not maintained by the County. He would like to have the new development establish an HOA that would be responsible for road maintenance.

2. Eric Lundgren - 2072 Sunlight Road - Concerns on maintenance and current condition of roads and would like the County to take over maintenance of these roads or require the development to create an HOA that takes on the responsibility of road maintenance and snow removal.

3. Ronald Canterbury - 2194 Ridley Road - Roads are not built well and additional traffic will further impact the road. Wants to see the road paved and brought up to County Code.

Shane Hansen responded that the developers have agreed to road improvements but

he can't speak to the establishment of an HOA.

Hearing nor further comments the public hearing was closed and Chairman Caughey called for a motion and discussion. Commissioner Stadel recused himself from any discussion and vote.

Molly Bennett, Public Works Manager, said the developers have agreed to build the roads to County Standards. The maintenance agreement will be between the developer and residents to the south since Public Works is overburdened and would not assume the responsibility of any more road maintenance. Since traffic counts do not meet the threshold requirement for paving these roads will not be required to be paved. Roads will be designed by an engineer, reviewed by Public Works, and also a third party engineer. A letter of compliance will be issued by Public Works after the roads are constructed and before any building permits will be issued.

A motion was made by Member Watkins, seconded by Member Smith, to approve The Badlands Preliminary Development Plan with four conditions and adopt the findings of fact a of the staff report. Vote 3 ayes and 1 abstain.

Aye: Caughey, Watkins, Smith

Excused: Gaspar

Recused: Stadel

Adjournment

Having no further business the meeting was adjourned at 4:04 p.m.

CERTIFICATION

True and correct copy of the Minutes of the Proceedings for Thursday, August 22, 2024.

Approved by the Laramie County Planning Commission on Thursday, September 12, 2024.